# MUTUAL CONFIDENTIALITY, NON-DISCLOSURE & NON-CIRCUMVENTION AGREEMENT

## MCNDA

| | |
|---|---|
| EFFECTIVE DATE | Date of last authorised signature |
| PARTY A | VIP CAPITAL |
| REPRESENTED BY | Mr. J.P. Kolfoort \| Managing Director (MD) |
| WEBSITE | https://www.vipcapital.eu/ |
| GOVERNING LAW | The Netherlands |

### PRIVATE & CONFIDENTIAL

This document contains confidential commercial, financial and transactional information and is intended solely for the Parties identified herein.

VIP CAPITAL Mutual Confidentiality, Non-Disclosure & Non-Circumvention Agreement (MCNDA)

## 1. PARTIES This Mutual Non-Disclosure, Non-Circumvention & Confidentiality Agreement (the "Agreement") is entered into as of the date of the last authorised signature (the "Effective Date"), by and between: Party A

**La Clava Elit BV, trading as VIP Capital, having its business address at Oude Apeldoornseweg 45-067, 7333 NR Apeldoorn, The Netherlands. Website: https://www.vipcapital.eu/ | E-mail: info@vipcapital.eu | Phone: +31 (0)85-200 9082. Represented by Mr. J.P. Kolfoort | Managing Director (MD). Hereinafter referred to as "VIP Capital" or "Party A".**

**Party B is the private individual identified by full name, residential address and passport number in the Counterparty Details on the execution page, which form an integral part of this Agreement. Party B acts as Broker / Introducer in a personal capacity and signs personally. A link to a client or company confers no authority to represent or bind that company. The signed passport copy is stored separately under restricted access and is not attached for circulation.**

**The Parties wish to discuss the following financial and related activities, subject to the Purpose and the qualifications in Article 3:**

- Private Equity and Strategic Investments
- Private Credit and Corporate Financing
- Bridge Finance and Working Capital
- Trade and Receivables Finance
- Import, Export and Supply Chain Finance
- Structured Finance and Capital Solutions
- Standby Letters of Credit (SBLCs)
- Documentary Letters of Credit (DLCs)
- Bank Guarantees (BGs)
- Medium-Term Notes (MTNs) and Long-Term Notes (LTNs)
- Financial Instrument Structuring and Arrangement
- Crypto-Assets and Digital Assets
- Tokenisation and Blockchain-Based Structures
- Capital Raising and Investor or Financier Introductions
- Any other lawful financial, investment, financing or related service agreed in writing between the Parties. These activities include structuring, arranging and coordinating issuance by appropriately authorised institutions, subject to applicable permissions and separate documentation. This Agreement protects discussions and information; it is not an issuance undertaking, regulated-service appointment or funding commitment.

## 2. DEFINITIONS For the purposes of this Agreement, the following terms shall have the meanings set forth below unless the context clearly requires otherwise.

**2.1 Agreement "Agreement" means this Mutual Non-Disclosure, Non-Circumvention & Confidentiality Agreement, including all schedules, appendices, amendments and attachments executed by the Parties.**

**2.2 Affiliate "Affiliate" means any company, corporation, partnership, joint venture or other legal entity that directly or indirectly controls, is controlled by, or is under common control with a Party.**

**2.3 Confidential Information "Confidential Information" means any information disclosed by either Party, whether in written, electronic, digital, oral or any other form, including but not limited to:**

- commercial opportunities;
- investor, lender, borrower and counterparty identities;
- mandates and appointments;
- capital requirements and proposed funding allocations;
- private equity, private credit and investment opportunities;
- bridge, working capital and structured finance opportunities;
- financial instrument terms, specifications and issuance conditions;
- pricing, yields, margins, fees and commercial structures;
- commission agreements, mandates and fee protection arrangements;
- banking information;
- financial information;
- proof of funds;
- letters of credit;
- issuer, guarantor and beneficiary details;
- issuance, maturity and repayment schedules;
- security, collateral and credit support arrangements;
- receivables and documentary credit records;
- underlying trade contracts and payment obligations;
- custody, settlement and transaction information;
- digital asset holdings and non-public wallet information;
- tokenisation and blockchain-based structures;
- verification and due diligence reports;
- valuation and risk assessment reports;
- contracts and amendments;
- trade finance structures;
- investor information;
- strategic business plans;
- customer databases;
- proprietary know-how;
- business methodologies;
- software, systems and databases;
- trade secrets; and
- any other information which a reasonable commercial person would consider confidential. Confidential Information shall remain confidential whether or not specifically marked "Confidential."

**2.4 Introduced Party "Introduced Party" means any investor, lender, borrower, issuer, guarantor, beneficiary, bank, financial institution, fund, asset owner, trade finance provider, digital asset counterparty, adviser, consultant, broker, introducer or other person or entity first specifically introduced by one Party to the other in connection with an identified Transaction, as evidenced by portal records or written communications.**

**2.5 Transaction "Transaction" means any actual or proposed investment, financing, capital raising, financial instrument issuance or arrangement, digital asset transaction, trade finance structure or related financial service within Article 3 which the Parties identify for evaluation, negotiation, structuring or execution.**

**2.6 Financial Instruments and Digital Assets "Financial Instruments and Digital Assets", for the purposes of this Agreement and without determining their regulatory classification, include:**

- standby letters of credit (SBLCs);
- documentary letters of credit (DLCs);
- bank guarantees (BGs);
- medium-term notes (MTNs);
- long-term notes (LTNs);
- debt securities and other credit instruments;
- equity interests and investment participations;
- loans and other financing arrangements;
- receivables and associated security interests;
- crypto-assets and digital tokens;
- tokenised assets and blockchain-based interests;

- collateral and credit support arrangements;
- structured investment or financing instruments; and
- other lawful instruments or assets agreed in writing. Any proposed issuance, offering, transfer, custody, trading or financing against an instrument or asset is subject to applicable law, required permissions, verification and the relevant institution's or counterparty's approval.

**2.7 Representatives "Representatives" means a Party's directors, officers, employees, shareholders, consultants, legal advisers, accountants, auditors, financial advisers, technical advisers, affiliates and other professional representatives who have a legitimate need to receive Confidential Information for the purposes of the Transaction and who are bound by confidentiality obligations no less restrictive than those contained herein.**

**2.8 Intellectual Property "Intellectual Property" means all copyrights, trademarks, patents, trade names, databases, proprietary information, business processes, commercial methodologies, software, documentation and all other intellectual property rights belonging to either Party.**

**2.9 Business Day "Business Day" means any day other than a Saturday, Sunday or official public holiday in the jurisdiction governing this Agreement.**

**2.10 Applicable Law "Applicable Law" means all applicable international treaties, national laws, regulations, sanctions, anti-money laundering legislation, anti-bribery legislation and governmental regulations governing the activities contemplated under this Agreement.**

Interpretation Unless the context requires otherwise:

- words importing the singular include the plural and vice versa;
- references to one gender include all genders;
- headings are included for convenience only and shall not affect interpretation;
- references to persons include natural persons, corporations, partnerships, governments, state-owned enterprises and all other legal entities;
- references to legislation include all amendments, replacements and successor legislation.

## 3. PURPOSE OF THE AGREEMENT

**3.1 Purpose The Parties may exchange Confidential Information to identify, assess, introduce, structure, arrange, negotiate and, where separately agreed, execute financial, investment and digital asset Transactions. Covered activities include:**

- private equity investments, acquisitions and co-investment structures;
- private credit, corporate and project financing;
- bridge finance, working capital and refinancing;
- trade, import, export and supply chain finance;
- receivables finance, invoice finance and documentary credits;
- structuring and arranging SBLCs, DLCs and bank guarantees;
- structuring and arranging MTNs, LTNs and other debt instruments;
- support for issuance by appropriately authorised institutions;
- structured finance, collateral and contractual cash-flow arrangements;
- crypto-assets, digital assets, tokenisation and related structures;
- capital raising, investor and financier introductions; and
- other related lawful services agreed in writing. The scope covers confidential discussions about issuance, offering, trading, exchange, transfer, custody, staking or financing where relevant, but does not authorise a Party to conduct activities requiring permissions it does not hold. VIP Capital is not represented by this Agreement as a bank, issuer or licensed investment or crypto-asset service provider.

**3.2 Exchange of Information Each Party may voluntarily disclose Confidential Information that it considers reasonably necessary for the evaluation, negotiation or execution of a potential Transaction. Neither Party shall be under any obligation to disclose any specific information unless it elects to do so in its sole discretion.**

**3.3 No Obligation to Proceed The execution of this Agreement shall not:**

- obligate either Party to enter into any Transaction;
- require either Party to continue negotiations;
- constitute an offer capable of acceptance;
- create any exclusivity unless separately agreed in writing;
- create any partnership, joint venture, agency, employment relationship or fiduciary relationship between the Parties. Each Party shall remain free to discontinue discussions at any time without liability, provided that the obligations contained in this Agreement continue to apply.

**3.4 Good Faith The Parties agree to conduct all discussions, negotiations and exchanges of information in good faith, in a professional manner and in accordance with internationally accepted commercial practices. Each Party further agrees to avoid any conduct intended to mislead, deceive, circumvent or unfairly prejudice the commercial interests of the other Party.**

**3.5 Compliance The Parties acknowledge that all Transactions contemplated under this Agreement shall be conducted in full compliance with all applicable:**

- international laws and regulations;
- sanctions regimes;
- anti-money laundering (AML) legislation;
- counter-terrorist financing (CTF) legislation;
- anti-bribery and anti-corruption laws, including the UK Bribery Act and the U.S. Foreign Corrupt Practices Act (FCPA), where applicable;
- export control regulations; and
- know-your-customer (KYC), financial services, securities, market-abuse and crypto-asset requirements. Before any regulated activity, the Parties shall identify and document their actual roles, required permissions and the responsible authorised provider. A partner's authorisation does not automatically cover another Party's activities, including introductions or intermediation. No activity may proceed without its required authorisation, notification or applicable exemption. Each Party may suspend or decline a proposed step where compliance has not been established.

**3.6 Independent Evaluation Each Party acknowledges that it is solely responsible for conducting its own legal, financial, technical and commercial due diligence before entering into any Transaction. Neither Party makes any representation or warranty as to the accuracy, completeness or suitability of any Confidential Information, except where expressly confirmed in writing.**

**3.7 Preservation of Commercial Relationships The Parties acknowledge that the introductions, business relationships, commercial opportunities and market intelligence exchanged under this Agreement are valuable proprietary assets. Accordingly, each Party undertakes to respect the confidentiality of such information and the commercial relationships established through the other Party, in accordance with the confidentiality and non-circumvention provisions of this Agreement.**

## 4. CONFIDENTIALITY OBLIGATIONS

**4.1 Duty of Confidentiality Each Party ("Receiving Party") shall maintain in strict confidence all Confidential Information received from the other Party ("Disclosing Party") and shall exercise at least the same degree of care in protecting such Confidential Information as it applies to its own confidential information of a similar nature, and in no event less than a reasonable standard of care.**

**4.2 Permitted Use Confidential Information shall be used solely for the purpose of evaluating, negotiating, facilitating or executing potential Transactions between the Parties and for no other purpose unless expressly authorized in writing by the Disclosing Party.**

**4.3 Restricted Disclosure Neither Party shall disclose Confidential Information to any third party without the prior written consent of the Disclosing Party, except where disclosure is required to:**

- directors, officers or employees;
- affiliated companies;
- legal counsel;
- accountants;
- auditors;
- insurers;
- banks;
- financiers;
- regulators; or
- professional advisers, provided that such persons have a legitimate need to know and are bound by confidentiality obligations no less restrictive than those contained in this Agreement.

**4.4 Exceptions The confidentiality obligations shall not apply to information which the Receiving Party can demonstrate: a. was lawfully known prior to disclosure; b. becomes publicly available through no breach of this Agreement; c. is lawfully obtained from an independent third party; d. is independently developed without reference to the Confidential Information; or e. must be disclosed pursuant to a court order, governmental authority or applicable law, provided that the Receiving Party gives prompt written notice to the Disclosing Party where legally permissible.**

**4.5 Standard of Protection Each Party shall implement appropriate administrative, technical and organizational safeguards to prevent unauthorized access, disclosure, copying or misuse of Confidential Information.**

## 5. NON-DISCLOSURE OF COMMERCIAL RELATIONSHIPS

**5.1 Protection of Business Relationships The Parties acknowledge that their investor, financier, banking, issuer, client, broker and other transaction relationships and introductions constitute valuable commercial information. Neither Party shall disclose the identity of an Introduced Party except with the introducing Party's prior written consent or as expressly permitted by Article 4.**

**5.2 No Direct Contact Except with the introducing Party's prior written approval, neither Party shall directly or indirectly contact, negotiate with or transact with any Introduced Party outside the framework of the contemplated Transaction.**

**5.3 No Unauthorized Use Neither Party shall use any Confidential Information or commercial relationship obtained through the other Party for its own benefit or for the benefit of any third party without prior written authorization.**

## 6. NON-CIRCUMVENTION

**6.1 Covenant Not to Circumvent The Parties agree that they shall not, directly or indirectly, circumvent, avoid, bypass or otherwise interfere with the business relationships, commercial interests or economic benefits of the other Party in relation to any Introduced Party.**

**6.2 Protected Parties This protection expressly includes, but is not limited to:**

- Investors;
- Lenders;
- Borrowers;
- Issuers;
- Guarantors;
- Beneficiaries;
- Private Equity Funds;
- Private Credit Funds;
- Family Offices;
- Asset Owners;
- Investment Counterparties;
- Digital Asset Counterparties;
- Authorised Custody Providers;
- Settlement and Payment Providers;
- Project Sponsors;
- Banks;
- Financial Institutions;
- Trade Finance Providers;
- Co-Investors;
- Government Agencies;
- Mandates;
- Brokers;
- Consultants;
- Agents;
- Intermediaries; and
- any affiliate or successor specifically introduced in connection with an identified Transaction. Documented pre-existing relationships and independently sourced unrelated opportunities are excluded; a Party relying on this exception shall retain reasonable supporting records.

**6.3 Prohibited Conduct Neither Party shall, without the express written consent of the introducing Party:**

- negotiate directly;
- conclude contracts;
- alter agreed commercial structures;
- reduce commissions;
- replace intermediaries;
- redirect payments;
- establish parallel negotiations; or
- otherwise deprive the introducing Party of its legitimate commercial participation.

**6.4 Continuing Protection All restrictions on contacting, dealing with or circumventing an Introduced Party under Articles 5, 6 and 8.3 apply for twenty-four (24) months from the first documented introduction of that party for the specific Transaction. Routine correspondence, repeated references or unrelated disclosures do not restart or extend this period. These restrictions survive expiry or termination only for its remaining balance, without shortening separate confidentiality obligations or separately agreed commission and payment rights.**

## 7. COMMISSION, REMUNERATION & FEE PROTECTION

**7.1 Recognition of Commercial Interests The Parties acknowledge that one or both Parties may earn commissions, arrangement fees, facilitation fees, brokerage fees, advisory fees or recurring remuneration under a separate written agreement. Signing this Agreement, sharing information or making an introduction does not alone create a right to payment.**

**7.2 Protection of Fees Neither Party shall interfere with any remuneration rightfully earned under a separate written commission agreement, mandate, engagement letter, fee protection agreement or Transaction document. Any recurring commission, its duration, calculation, reporting and payment triggers must be expressly agreed in that separate document.**

**7.3 Separate Commercial Agreements The Parties acknowledge that commission structures, payment terms and remuneration arrangements shall be governed by the relevant:**

- Mandate or Engagement Agreement;
- Commission or Introducer Agreement;
- Arrangement or Fee Protection Agreement;
- Investment or Financing Agreement;
- Brokerage or Advisory Agreement; or
- other written commercial agreement, executed in connection with the relevant Transaction.

**7.4 Good Faith The Parties undertake to act in good faith to preserve agreed commercial structures and to ensure that all remuneration due to the entitled Party is paid in full and without unnecessary delay.**

**7.5 Equitable Relief The Parties acknowledge that any breach of Articles 5, 6 or 7 may cause irreparable commercial harm for which monetary damages alone may be insufficient. Accordingly, the non-breaching Party shall be entitled to seek injunctive relief, specific performance and any other remedies available under applicable law, without prejudice to its right to recover damages.**

## 8. OWNERSHIP OF CONFIDENTIAL INFORMATION

**8.1 Ownership All Confidential Information disclosed under this Agreement shall remain the exclusive property of the Disclosing Party. Nothing contained in this Agreement shall be construed as transferring, assigning, licensing or otherwise conveying any ownership rights, intellectual property rights or proprietary interests to the Receiving Party, except for the limited right to use such Confidential Information solely for the purposes contemplated by this Agreement.**

**8.2 Intellectual Property All patents, copyrights, trademarks, trade names, trade secrets, databases, software, methodologies, know-how, commercial processes and other intellectual property rights belonging to either Party shall remain the sole property of that Party.**

No licence, assignment or transfer of any intellectual property rights is granted or implied by the disclosure of Confidential Information.

**8.3 No Commercial Rights The receipt of Confidential Information shall not entitle either Party to:**

- issue, offer or market any instrument or digital asset in the other Party's name;
- solicit or contract with any Introduced Party;
- reproduce proprietary documentation;
- use proprietary systems or methodologies; or
- exploit the commercial value of the disclosed information, except as expressly authorised in writing.

## 9. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

**9.1 Return of Information Upon written request by the Disclosing Party, or upon termination of this Agreement, the Receiving Party shall promptly:**

- return all Confidential Information;
- permanently delete electronic copies where reasonably practicable; and
- destroy any working copies or reproductions, unless retention is required by applicable law or regulatory obligation.

**9.2 Archival Copy Each Party may retain one secure archival copy solely for:**

- legal compliance;
- regulatory purposes;
- audit requirements; or
- defence of legal claims. Such archival copy shall remain subject to the confidentiality obligations of this Agreement.

**9.3 Certification Upon written request, the Receiving Party shall confirm in writing that it has complied with this Article.**

## 10. REPRESENTATIONS AND WARRANTIES

**10.1 Authority Each Party confirms its legal capacity and authority to enter into this Agreement. A company signatory must be authorised to bind that company. A private individual signs in a personal capacity. Linking a broker or introducer to a client in the portal confers no authority to represent or bind that client.**

**10.2 Accuracy of Information Each Party believes that the information disclosed is accurate to the best of its knowledge at the time of disclosure. However, unless expressly stated otherwise in writing, no representation or warranty is made regarding the completeness, suitability or future accuracy of any Confidential Information.**

**10.3 Independent Due Diligence Each Party acknowledges that it remains solely responsible for conducting its own:**

- commercial;
- financial;
- legal;
- regulatory; and
- technical due diligence before entering into any Transaction. Neither Party shall rely exclusively upon information received under this Agreement.

**10.4 No Obligation to Transact This Agreement does not oblige either Party to conclude a Transaction, continue negotiations, provide funding, issue an instrument, guarantee performance, take custody of assets or appoint the other Party. Such obligations require separate executed documentation and satisfaction of its conditions.**

**10.5 Verification and Security Instrument copies, bank messages, proofs of funds, forecasts and blockchain records are not guarantees of funding, authenticity, liquidity or returns. Each Party shall independently verify counterparties, authority, instruments and applicable permissions. Neither Party shall request seed phrases, private keys, passwords or authentication codes through the portal or ordinary communications. No false mandate, fabricated bank message or misleading assurance is permitted.**

## 11. TERM, TERMINATION AND SURVIVAL

**11.1 Effective Date This Agreement shall become effective on the date of execution by the last signing Party.**

**11.2 Duration Unless terminated earlier in accordance with this Article, this Agreement shall remain in force for twenty-four (24) months. The Parties may extend the Agreement by mutual written consent.**

**11.3 Termination Either Party may terminate this Agreement by giving thirty (30) calendar days' written notice to the other Party. Termination shall not affect any rights or obligations that arose prior to the effective date of termination.**

**11.4 Survival The provisions relating to:**

- Confidentiality;
- Non-Disclosure;
- Non-Circumvention;
- Commission Protection;
- Intellectual Property;
- Governing Law;
- Dispute Resolution; and
- Remedies remain available to enforce surviving obligations. Confidentiality and non-disclosure obligations continue for five (5) years after expiry or termination. Article 6 follows the specific period in Article 6.4. Accrued rights and separate commission or payment agreements continue according to their own terms, including recurring payments. Trade secrets remain protected while qualifying as such under applicable law. Ownership rights are not extinguished by expiry or termination; governing law and dispute resolution continue to apply to surviving rights and obligations.

## 12. DATA PROTECTION, COMPLIANCE AND SANCTIONS

**12.1 Data Protection Each Party shall process personal data in accordance with applicable data protection law, including the GDPR where applicable. Identity and passport records shall be limited to necessary purposes, retained only with an appropriate legal basis and retention justification, and held separately under restricted access. Linking accounts does not permit sharing passport copies with clients or other brokers.**

**12.2 Anti-Bribery and Anti-Corruption Each Party represents that it shall comply with all applicable anti-bribery and anti-corruption legislation, including, where applicable:**

- the UK Bribery Act 2010;
- the U.S. Foreign Corrupt Practices Act (FCPA); and
- equivalent legislation in the jurisdictions in which the Parties operate. Neither Party shall offer, promise, solicit or accept any improper payment or advantage in connection with any Transaction.

**12.3 Anti-Money Laundering (AML) and Counter-Terrorist Financing (CTF) The Parties shall comply with all applicable AML and CTF laws and regulations and shall maintain appropriate Know Your Customer (KYC) procedures before entering into any Transaction. Each Party reserves the right to request reasonable documentation necessary to satisfy its compliance obligations.**

**12.4 Sanctions Compliance Neither Party shall knowingly engage in any Transaction that would violate applicable sanctions imposed by the United Nations, the European Union, the United States, the United Kingdom, or any other competent governmental authority applicable to that Party.**

If either Party reasonably believes that a proposed Transaction may breach applicable sanctions or export control laws, it may suspend discussions or decline to proceed without incurring liability under this Agreement.

## 13. FORCE MAJEURE

**13.1 Definition Neither Party shall be liable for any delay or failure in the performance of its obligations under this Agreement where such delay or failure results directly or indirectly from events beyond its reasonable control, including but not limited to:**

- acts of God;
- natural disasters;
- war (declared or undeclared);
- terrorism;
- civil unrest or riots;
- strikes or labour disputes;
- epidemics or pandemics;
- governmental actions;
- sanctions;
- embargoes;
- changes in applicable law;
- cyber-attacks;
- widespread telecommunications failures; or
- any other event that could not reasonably have been anticipated or avoided.

**13.2 Notification The affected Party shall promptly notify the other Party in writing of the Force Majeure event, its expected duration and the measures being taken to mitigate its effects.**

**13.3 Resumption The affected Party shall use commercially reasonable efforts to resume performance as soon as practicable. This Article does not authorise disclosure or misuse of information, remove reasonable security duties, excuse accrued payment obligations or override mandatory law.**

## 14. ASSIGNMENT Neither Party may assign, transfer, delegate or otherwise dispose of any of its rights or obligations under this Agreement without the prior written consent of the other Party. This restriction shall not apply to assignments made to an Affiliate as part of an internal corporate reorganisation, provided that such Affiliate assumes all obligations contained herein.

## 15. NOTICES

**15.1 Method of Delivery Formal notices shall be in writing and delivered to the contact details designated by each Party by:**

- electronic mail to the designated notice address;
- internationally recognised courier;
- registered mail; or
- personal delivery. Transaction documents and confidential business communications shall be exchanged through the VIP Capital portal or another expressly approved secure channel. WhatsApp and informal messaging services are not authorised channels for confidential materials or formal notices.

**15.2 Deemed Receipt A notice shall be deemed received:**

- upon acknowledgement or other reliable evidence of email receipt, excluding automated out-of-office replies;
- on the date of delivery by courier;
- upon signed receipt for registered mail; or
- upon personal delivery.

**15.3 Change of Contact Details Either Party may change its contact details by providing written notice to the other Party.**

**16. GOVERNING LAW This Agreement shall be governed by and construed in accordance with the laws of the Netherlands, excluding its conflict of laws rules.**

**17. DISPUTE RESOLUTION The Parties shall first endeavour to resolve any dispute arising out of or in connection with this Agreement through good-faith negotiations. If a dispute cannot be resolved within thirty (30) calendar days, it shall be submitted exclusively to the competent court in Amsterdam, the Netherlands, subject to any mandatory rules of jurisdiction. Nothing in this Article shall prevent either Party from seeking urgent interim or injunctive relief before any court of competent jurisdiction where necessary to protect Confidential Information, commercial relationships or intellectual property.**

**18. REMEDIES The Parties acknowledge that a breach of this Agreement may result in irreparable commercial harm. Accordingly, the non-breaching Party shall be entitled to:**

- injunctive relief;
- specific performance;
- recovery of direct damages;
- recovery of reasonable legal costs where awarded by the tribunal or court; and
- any other remedy available under applicable law. These remedies shall be cumulative and shall not exclude any other rights available at law or in equity.

## 19. MISCELLANEOUS

**19.1 Entire Agreement This Agreement constitutes the entire understanding between the Parties concerning the subject matter herein and supersedes all previous discussions, representations and agreements relating thereto.**

**19.2 Amendments No amendment or modification shall be effective unless made in writing and signed by authorised representatives of both Parties.**

**19.3 Severability If any provision of this Agreement is held to be invalid, illegal or unenforceable, the remaining provisions shall remain in full force and effect.**

**19.4 Waiver No failure or delay by either Party in exercising any right shall constitute a waiver of that right.**

**19.5 Counterparts This Agreement may be executed in any number of counterparts, each of which shall be deemed an original and all of which together shall constitute one Agreement.**

**19.6 Electronic Signatures The Parties may execute this Agreement through the VIP Capital portal or another agreed electronic signing service, as permitted by applicable law. Portal signing requires explicit acceptance of the reviewed PDF and a single-use confirmation code sent to the registered account email, linked to that document's SHA-256 hash. Account identity, acceptance, confirmation and signature timestamps and document hashes shall be retained as evidence. This process is not represented as a qualified electronic signature. Where required by law or separately agreed for the relevant transaction, an appropriate advanced or qualified signing method shall be used. English remains authoritative; translated interfaces and emails do not amend the Agreement.**

# 20. EXECUTION

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date of the last authorised signature. Party B signs first; VIP Capital is bound only upon its authorised countersignature. A pre-inserted signature image, stamp or release notification does not itself constitute that countersignature.

## PARTY A
### VIP CAPITAL

Company Address: Oude Apeldoornseweg 45-067, 7333 NR Apeldoorn, The Netherlands. Represented by

Mr. J.P. Kolfoort | Managing Director (MD).

**Signature:** _____ **|** **Date:** _____

## PARTY B